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Case Number: 22AVCV00307 Hearing Date: August 20, 2026 Dept: A15

MARIA MARTINEZ v. 99 CENTS ONLY STORES, LLC et al.

Motion to Lift Stay

BACKGROUND

Plaintiff Maria Martinez filed this premises liability action against 99 Cents Only Stores, LLC (99 Cents), on May 2, 2022. 99 Cents answered on August 22, 2022. Plaintiff later substituted Southern California Ice Company (SCIC) for DOE 1. SCIC answered and, on September 25, 2023, filed a cross-complaint against 99 Cents.

On April 17, 2024, 99 Cents filed a Notice of Stay of Proceedings stating that it had filed a bankruptcy petition and that this action was stayed under title 11 United States Code section 362. (Notice of Stay of Proceedings, p. 1.) The Court thereafter maintained the action on its bankruptcy-review calendar.

On February 9, 2026, Plaintiff submitted a CIV-110 requesting dismissal without prejudice of her complaint only as to 99 Cents. The clerk checked item 6, stating: "Dismissal not entered as requested" because "[t]his case is stayed due to a Bankruptcy filed on 04/17/2024." (Request for Dismissal, item 6.)

Plaintiff filed the present motion on July 2, 2026. The notice seeks an order lifting the stay. The motion rests on the premise that 99 Cents already was dismissed and that no stay applies to the remaining defendant. (Mot., pp. 1-2.) Counsel's declaration similarly describes Exhibit A as the request for dismissal "and dismissal entered by the Court." (Werbin Decl. in Supp. Mot., ¶ 4.) Exhibit A, however, is the clerk-marked CIV-110 stating that the dismissal was not entered.

SCIC opposed the motion. It argued that 99 Cents remains a party, that SCIC's cross complaint against 99 Cents remains pending, and that the state court cannot modify a federal automatic stay. (Opp'n, p. 2.) Plaintiff's reply supplied federal bankruptcy orders and stipulations that were not included with the motion. It also requested new affirmative relief: that the Court dismiss 99 Cents only, lift the stay, and set a trial setting conference against SCIC. (Reply, p. 3.)

The motion's proof of service lists only SCIC's counsel. (Mot., Proof of Service, pp. 9-10.) SCIC's opposition proof of service lists only Plaintiff's counsel. (Opp'n, Proof of Service, pp. 1-2.) The reply's proof of service again lists only SCIC's counsel. (Reply, Proof of Service, pp. 6-7.) None identifies 99 Cents or its attorney of record. No supplemental proof of service on 99 Cents, and no waiver by 99 Cents, appears in the record.

LEGAL STANDARD

"Unless otherwise ordered or specifically provided by law, all moving and supporting papers shall be served and filed at least 16 court days before the hearing." (Code Civ. Proc., § 1005, subd. (b).) Copies of opposition and reply papers must be served on each party. (§ 1005, subds. (b), (c).) "A motion . . . is deemed to have been made and to be pending . . . upon the due service and filing of the notice of motion . . ." (§ 1005.5.) A notice of motion must state the grounds and the supporting papers, and a copy of any supporting paper not previously served must accompany the notice. (§ 1010.)

When a party is represented, required service must be made on the party's attorney. (Cal. Rules of Court, rule 1.21(a).) The proof must identify each attorney served and the party represented. (Cal. Rules of Court, rule 1.21(c).) Proof of service of moving papers must be filed no later than five court days before the hearing. (Cal. Rules of Court, rule 3.1300(c).)

A defendant appears by answering. (Code Civ. Proc., § 1014.) After appearing, the defendant or its attorney is entitled to notice of every subsequent proceeding for which notice is required. (Ibid.) The statutory exception for a defaulted or nonappearing party therefore does not apply to an answering defendant. (§§ 1010, 1014.)

These service requirements protect the right to notice and a meaningful opportunity to be heard before a court grants relief affecting a party. (See *Isbell v. County of Sonoma* (1978) 21 Cal.3d 61, 68.) A party may waive defective service by opposing the motion, appearing and arguing at the hearing, and proceeding without requesting a continuance or showing prejudice. (*Carlton v. Quint* (2000) 77 Cal.App.4th 690, 697.) That waiver depends on the conduct of the party entitled to notice; another party cannot supply it.

A written dismissal is effective for all purposes when entered in the clerk's register. (Code Civ. Proc., § 581d.) Filing a request that the clerk expressly declines to enter does not accomplish a dismissal. (*Boonyarit v. Payless Shoesource, Inc.* (2006) 145 Cal.App.4th 1188, 1192-1193.)

DISCUSSION

A. 99 Cents Remains an Appearing Party Entitled to Notice

99 Cents answered the complaint. It therefore appeared and became entitled under Code of Civil Procedure section 1014 to notice of this motion. The February 9 CIV-110 did not end that status. The clerk expressly declined to enter the requested dismissal, and section 581d makes entry the event that renders a written dismissal effective. The motion's assertion that the dismissal was entered is contrary to its own Exhibit A and to the Register of Actions.

There is an independent reason 99 Cents remains a party. Plaintiff's CIV-110 requested dismissal only of Plaintiff's complaint against 99 Cents. SCIC's cross complaint against 99 Cents remains pending. Plaintiff cannot dispose of SCIC's affirmative cross claim by dismissing her own complaint. Thus, even if Plaintiff later obtains entry of the requested dismissal of the complaint, 99 Cents remains a cross defendant unless and until the cross action is separately resolved.

The requested relief directly affects 99 Cents. The notice seeks to lift the stay entered because of its bankruptcy. The reply goes further and asks the Court itself to dismiss 99 Cents. Any ruling concerning the stay, the Plan Injunction, the asserted dismissal, or the pending cross action may affect 99 Cents's procedural and substantive rights. Service on SCIC alone is not a substitute for notice to 99 Cents.

B. The Absence of Demonstrated Service Requires Denial Without Prejudice

The filed proofs do not show that Plaintiff served the moving or reply papers on 99 Cents or its attorney. The opposition was not served on 99 Cents either. Accordingly, the Court does not have a fully noticed motion record on which it can grant the requested relief.

99 Cents did not file an opposition, appear in connection with the motion, argue the merits, or otherwise waive the service defect. SCIC opposed the motion, but SCIC cannot waive the separate notice rights of 99 Cents. The circumstances that supported waiver in Carlton are absent here.

The problem is not cured by treating Plaintiff's request as limited to SCIC. Plaintiff asks to reactivate an action in which 99 Cents remains both a defendant and a cross defendant. Plaintiff also asks, for the first time in reply, for an order dismissing 99 Cents. That relief was not requested in the notice of motion and was not served on the party to be dismissed. The Court will not grant it on this record.

Denial without prejudice is the appropriate limited disposition. It grants no affirmative relief against the absent party, preserves the existing state court stay, and permits a renewed request after all appearing parties receive the required notice and opportunity to respond. A denial without prejudice permits renewal after the deficiency has been corrected. (*Farber v. Bay View Terrace Homeowners Assn.* (2006) 141 Cal.App.4th 1007, 1015.) A continuance on the existing papers would not cure the absence of service of the motion, the reply-only request to dismiss 99 Cents, or the need to frame the precise relief sought under the later federal orders.

C. The Federal Bankruptcy Questions Are Reserved

The opposition and reply present materially different accounts of the federal bankruptcy record. SCIC argues that the automatic stay remains and that this Court cannot lift it. Plaintiff's reply exhibits state that the automatic stay terminated on the Plan's effective date and was replaced by a Plan Injunction. (Reply, Ex. C, Martinez Stipulation, p. 7.) The reply also attaches an approved stipulation that defines the "Martinez State Court Action" as this entire action and includes provisions concerning dismissal, the sole source of recovery, and retained Bankruptcy Court jurisdiction. (*Id.*, pp. 1-2, 9-10.)

Those federal materials first appeared with the reply, were not served on 99 Cents, and do not warrant a definitive construction in that party's absence. The Court therefore does not decide whether the automatic stay remains operative; whether the Plan Injunction reaches claims solely against SCIC; whether the approved stipulation requires dismissal of Plaintiff's claims, the entire action, or some narrower set of claims; whether it affects SCIC's cross-complaint; or whether further relief or clarification from the Bankruptcy Court is required. Those questions remain open for a properly noticed proceeding.

Any renewed motion must accurately identify the existing parties and pleadings, specify the exact state court relief requested, and explain how that relief is consistent with the Confirmation Order, the Plan Injunction, and the approved Martinez stipulation. If the federal orders are ambiguous as applied to the proposed course, the parties should address the Bankruptcy Court's retained authority to interpret and enforce them.

CONCLUSION

99 Cents remains an appearing defendant and cross defendant. The filed proofs do not show service of the motion or reply on 99 Cents or its attorney, and 99 Cents has not waived notice. Plaintiff's reply also seeks affirmative dismissal relief that was not included in the notice of motion. The Court therefore denies the motion without prejudice, leaves the existing state court stay in effect, and does not reach the federal bankruptcy questions.

To submit without oral argument, all parties must follow the Department's "Submitting on a Tentative Ruling" instructions. Only one joint email may be sent. Do not telephone the courtroom. If the parties do not unanimously agree to submit, any party may appear at the scheduled hearing without advance notice.